

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                     |                           |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Christina Vuong                 | Team:<br>Team # 3                                                                   | CCRB Case #:<br>201401512 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 02/04/2014 10:35 PM | Location of Incident:<br>Vermont Court and Bulwer Place, 75th Precinct stationhouse | 18 Mo. SOL<br>8/4/2015    | Precinct:<br>75                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 02/14/2014 4:29 PM | CV Reported At:<br>CCRB                                                             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 02/14/2014 4:29 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. POM Michael Ardolino   | 03101  | 951507 | 075 PCT |
| 2. POM William Schumacher | 04618  | 949640 | 075 PCT |
| 3. SGT Robert Agate       | 03869  | 941317 | 075 PCT |
| 4. POM Juan Morales       | 07010  | 952033 | 075 PCT |

| Officer(s)                 | Allegation                                                                                                                                                                                   | Investigator Recommendation |
|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Michael Ardolino   | Abuse: At Vermont Court and Bulwer Place in Brooklyn, PO Michael Ardolino searched § 87(2)(b)                                                                                                | A . Exonerated              |
| B . POM William Schumacher | Abuse: At Vermont Court and Bulwer Place in Brooklyn, PO William Schumacher searched § 87(2)(b)                                                                                              | B . Exonerated              |
| C . POM Juan Morales       | Abuse: At Vermont Court and Bulwer Place in Brooklyn, PO Juan Morales searched the vehicle in which § 87(2)(b) was an occupant.                                                              | C . Exonerated              |
| D . POM Michael Ardolino   | Abuse: At Vermont Court and Bulwer Place in Brooklyn, PO Michael Ardolino searched the vehicle in which § 87(2)(b) was an occupant.                                                          | D . Exonerated              |
| E . POM William Schumacher | Abuse: At Vermont Court and Bulwer Place in Brooklyn, PO William Schumacher searched the vehicle in which § 87(2)(b) was an occupant.                                                        | E . Exonerated              |
| F . POM Michael Ardolino   | Abuse: At Vermont Court and Bulwer Place in Brooklyn and at the 75th Precinct stationhouse, PO Michael Ardolino refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)   | F . Unsubstantiated         |
| G . POM William Schumacher | Abuse: At Vermont Court and Bulwer Place in Brooklyn and at the 75th Precinct stationhouse, PO William Schumacher refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b) | G . Unsubstantiated         |
| H . POM Juan Morales       | Abuse: At Vermont Court and Bulwer Place in Brooklyn and at the 75th Precinct stationhouse, PO Juan Morales refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)       | H . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)       |                                                                                                                                                                                              |                             |
|                            |                                                                                                                                                                                              |                             |

## Case Summary

On February 14, 2014, § 87(2)(b) filed the following complaint on behalf of herself and her boyfriend § 87(2)(b) via phone with the Civilian Complaint Review Board (CCRB).

On February 4, 2014 at 10:35 p.m., PO Michael Ardolino, PO William Schumacher, and PO Juan Morales of the 75<sup>th</sup> Precinct stopped § 87(2)(b) and § 87(2)(b) who were inside of an idling car, at Vermont Court and Bulwer Place in Brooklyn. The following allegations resulted:

- **Allegation A- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO Michael Ardolino searched § 87(2)(b)**
- **Allegation B- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO William Schumacher searched § 87(2)(b)**
- **Allegation C- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO Juan Morales searched the vehicle in which § 87(2)(b) was an occupant.**
- **Allegation D- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO Michael Ardolino searched the vehicle in which § 87(2)(b) was an occupant.**
- **Allegation E- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO William Schumacher searched the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

Therefore, it is recommended that Allegations A through E be **exonerated**.

- **Allegation F- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn and at the 75<sup>th</sup> Precinct stationhouse, PO Michael Ardolino refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)**
- **Allegation G- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn and at the 75<sup>th</sup> Precinct stationhouse, PO William Schumacher refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)**
- **Allegation H- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn and at the 75<sup>th</sup> Precinct stationhouse, PO Juan Morales refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that Allegations F through H be **unsubstantiated**.

- § 87(4-b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Because both civilians were arrested during the incident, the case was ineligible for mediation.

## Results of Investigation

### Civilian Statements:

### Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) Hispanic woman with dyed blonde hair and brown eyes, was § 87(2)(b) old at the time of the incident.

**CCRB Statement** (encl. D3-8)

On February 20, 2014, § 87(2)(b) provided an in-person statement at the CCRB. No prior phone statement was obtained. § 87(2)(g)

On February 4, 2014 at 10:35 p.m., § 87(2)(b) and her boyfriend § 87(2)(b) had been sitting inside of her car talking for 10 minutes, when a marked RMP containing three uniformed officers from the 75<sup>th</sup> Precinct drove slowly towards and pulled up alongside them, such that the driver's side of the RMP aligned with the driver's side of her car. § 87(2)(b) drives a white Chrysler registered to her name. Her car was stopped and idling next to a fire hydrant on Vermont Court and Bulwer Place in Brooklyn, a dead-end street. § 87(2)(b) sat in the driver's seat and § 87(2)(b) sat in the front passenger's seat.

§ 87(2)(b) stated that § 87(2)(b) "probably" smoked marijuana at his apartment earlier that evening. She denied any odor of marijuana to § 87(2)(b) the vehicle, or in the vicinity. No drugs were displayed in the vehicle. § 87(2)(b) lowered her windows and said, "Yes, officer?" § 87(2)(b) denied personally making or seeing § 87(2)(b) make any body movements inside the car. The driver, described as a 5'7" tall white male officer with brown hair and blue eyes, identified by the investigation as PO William Schumacher, asked what they were doing. § 87(2)(b) responded that they were talking. PO Schumacher instructed both to exit the car and to sit on the bumper. § 87(2)(b) and § 87(2)(b) complied.

§ 87(2)(b) wore a jacket and jeans. She had nothing in her pockets. § 87(2)(b) wore a sweater and jeans. § 87(2)(b) believed § 87(2)(b) had a cellphone in his right front pants pocket.

PO Schumacher started questioning where § 87(2)(b) lived and what she was doing in the area. Simultaneously, the rear passenger, described as a 6' tall black male officer, identified by the investigation as PO Juan Morales, started to search § 87(2)(b)'s vehicle. § 87(2)(b) did not see this, because she was facing away and was instructed by PO Schumacher to look at him. However, she heard the back doors open, the glove compartment and middle console opening, and papers shuffling.

The front passenger, a 5'5" tall white male officer with brown hair and brown eyes, identified by the investigation as PO Michael Ardolino and whom § 87(2)(b) identified as the arresting officer, asked for § 87(2)(b)'s ID but not hers. PO Ardolino patted down § 87(2)(b)'s torso and legs, and reached inside his front and back pockets. She next saw PO Ardolino with a small, 1" square plastic bag of loose marijuana in hand, but did not see from where it was recovered. PO Ardolino handcuffed § 87(2)(b). PO Schumacher and PO Morales questioned § 87(2)(b) about his gang affiliation, guns, and the source of the marijuana.

Shortly after searching and handcuffing § 87(2)(b) PO Ardolino grabbed and felt § 87(2)(b)'s jacket pockets before putting his hands inside the pockets. PO Ardolino then leaned his torso into the rear passenger's side. She heard similar shuffling noises but did not actually see if PO Ardolino touched anything. PO Schumacher instructed her to look at him instead when she tried to turn her head back.

PO Schumacher and PO Ardolino went back to the RMP to run § 87(2)(b)'s ID. PO Schumacher came back and instructed § 87(2)(b) to turn around, and he handcuffed her with no explanation. At that time, she was asked for her ID. One of the officers drove § 87(2)(b)'s vehicle to the stationhouse.

At the 75<sup>th</sup> Precinct stationhouse, § 87(2)(b) asked the three officers in a loud voice, "I need your names and badge numbers." PO Schumacher, who was slightly behind § 87(2)(b) at the time, responded, "No problem, you'll get it." PO Morales stood behind § 87(2)(b) at the time, but § 87(2)(b) did not pay attention to see if PO Morales responded to her request. PO Ardolino was giving paperwork to the male desk officer, whom she heard other officers address as "Sarge," identified by the investigation as Sgt. Robert Agate. § 87(2)(b) said aloud, "I'm going to need the names and shield numbers for all three of you," but § 87(2)(b) stated that § 87(2)(b) was not speaking to any officer in particular. PO Ardolino responded, "You're going to get any information you need." § 87(2)(b) continued to ask PO Ardolino ten times for his name and shield number. PO Ardolino replied, "You're going to get all that." He did not explain where the information could be found or when she would receive his information.

§ 87(2)(b) was later informed that she had an active warrant for a Queens parking ticket. She was taken to Queens Criminal Court where the case was adjourned in contemplation of dismissal.

§ 87(2)(b) was later informed that her vehicle was being held for a shooting investigation from an incident that occurred in front of 722 Wortman Avenue in Brooklyn. § 87(2)(b) denied ever going to that location and denied that anyone besides herself would operate her vehicle.

**Victim:** § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *old at the time of the incident, is a § 87(2)(b) black man with black hair and brown eyes. He is § 87(2)(b)'s boyfriend.*

**CCRB Statement** (encl. D9- 14)

On February 24, 2014, § 87(2)(b) provided a phone statement to the CCRB. On April 2, 2014, he was interviewed at § 87(2)(b) at Rikers Island. § 87(2)(g)

§ 87(2)(b) wore an unzipped jacket in which he had his ID and a red bandana, and had some cash in his pants. None of the items created a bulge. § 87(2)(b) admitted he was in possession of a bag of marijuana and that it was most likely in the cupholder underneath his drink bottle. There was also a red boxcutter inside of the side panel of the front passenger's side door.

§ 87(2)(b) stated that he smoked a marijuana blunt at home one hour prior to the incident. During his phone statement, he denied being high at the time of the incident. However, during his in-person statement, he stated that he was high, but that "he could control it." § 87(2)(b) maintained that neither he nor the vehicle smelled of marijuana.

PO Schumacher, the driver, opened § 87(2)(b)'s door and led him to the rear of the vehicle. He denied making any body movements through this point. PO Schumacher handcuffed him, stating that he needed to do so for the officers' safety. After being asked for ID, § 87(2)(b) told PO Schumacher it was inside his jacket pocket, and PO Schumacher removed it. PO Schumacher then searched the rest of § 87(2)(b)'s pockets. PO Schumacher instructed PO Ardolino, the officer in the front passenger seat who later processed § 87(2)(b)'s arrest and whose name § 87(2)(b) obtained from his arrest paperwork, to search the car. § 87(2)(b) described PO Schumacher as a 5'7" to 5'8" tall white man with black hair and light eyes, and PO Ardolino as a 5'6" to 5'7" tall white man with black hair. PO Ardolino left but came "right back." PO Schumacher then went towards the front of § 87(2)(b)'s car and returned soon after with the marijuana and box cutter in hand. From his position, § 87(2)(b) did not actually see any officer enter the car.

PO Schumacher stated that § 87(2)(b) was wanted for a recent shooting. The officers stated that § 87(2)(b) also needed to be detained for questioning. She was searched and handcuffed at that time.

§ 87(2)(b) and § 87(2)(b) both started repeatedly asking each of the officers for their name and shield numbers. PO Schumacher stated that he would provide it to them at the stationhouse. PO Morales and PO Ardolino did not respond and laughed. PO Morales drove § 87(2)(b)'s vehicle to the stationhouse.

Inside the RMP, § 87(2)(b) saw his photo displayed on the mobile data terminal, and saw the caption noting that he was wanted for attempted murder and the phrase "proceed with caution."

At the stationhouse, § 87(2)(b) and § 87(2)(b) continued to ask for the three officers' names and shield numbers. The officers were within a few feet of them, and looked at them but did not respond.

**NYPD Statements:**

**Subject Officer: PO MICHAEL ARDOLINO**

- *PO Ardolino, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white man with brown hair and brown eyes.*



At some point, § 87(2)(b) and § 87(2)(b)'s IDs were obtained and PO Ardolino ran a name check. § 87(2)(b) had an active warrant and § 87(2)(b) had an active I-Card noting probable cause to arrest for a prior assault. Her vehicle was driven to the stationhouse, where an inventory search was conducted.

After § 87(2)(b) and § 87(2)(b) were handcuffed, they became irate. PO Ardolino specifically remembered § 87(2)(b) stating that he was a Bloods gang member and threatening to shoot and hurt the officers if they released him from his handcuffs. Sgt. Agate verified the arrests over the phone.

At the scene, § 87(2)(b) and § 87(2)(b) did not ask for any officer's name or shield number. At no point did any officer attempt to conceal their identity in any way.

At the stationhouse, both civilians were more agitated. PO Ardolino did not hear § 87(2)(b) or § 87(2)(b) ask any officer to provide their name or shield number. He did not recall having any interaction at the stationhouse with § 87(2)(b) or § 87(2)(b).

PO Ardolino reviewed the arrest paperwork but it did not refresh his memory of the incident.

**Subject Officer: PO WILLIAM SCHUMACHER**

- PO Schumacher, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white man with brown hair and hazel eyes.
- On February 4, 2014, PO Schumacher worked from 5:30 p.m. to 2:05 a.m. on February 5, 2014. He had the same assignment as PO Ardolino.

**Memo Book** (encl. E15-17)

PO Schumacher had no relevant memo book entries. At 6 p.m., he was on patrol. At 2:05 a.m., his tour ended. On his fly sheet, he noted a car stop at [Vermont Court and Bulwer Place] for idling, and he marked § 87(2)(b)'s arrest for § 87(2)(b) and § 87(2)(b)'s for an active warrant.

**CCRB Statement** (encl. E18-20)

PO Schumacher failed to appear at the CCRB for three scheduled appointments. He had a new arrest for the fourth scheduled appointment, and was not notified by the precinct for his fifth scheduled appointment.

On August 29, 2014, PO Schumacher provided a statement to the CCRB. § 87(2)(g)

PO Schumacher stated that he sat in the back seat. However, the investigation determined that he was the driver. He did not recall his partners' seating position.

As his partners approached unknown sides of § 87(2)(b)'s vehicle, PO Schumacher walked past § 87(2)(b)'s vehicle, and waited at the rear. He could not describe his partners' interaction with the civilians before he next saw § 87(2)(b) and § 87(2)(b) walking towards him.

PO Schumacher did not recall observing any bulges to § 87(2)(b) and § 87(2)(b)'s clothing. He did not recall any verbal or physical interaction at the rear of the vehicle. He did not recall any frisks or searches occurring at the scene. He did not recall any vehicle search to have taken place.

PO Schumacher described § 87(2)(b) and § 87(2)(b) as angry and disrespectful, but could not elaborate. He did not know if any civilians asked for any officers' names or shield numbers at the scene.

PO Schumacher did not remember at what point § 87(2)(b) and § 87(2)(b)'s IDs were obtained or when the name checks were performed. He was aware that marijuana was recovered, but did not know from where or at what point it was recovered.

PO Schumacher denied interacting with the civilians at the stationhouse, and did not see his partners do so. He did not hear § 87(2)(b) or § 87(2)(b) ask for any officers' names or shield numbers, and denied saying to § 87(2)(b) or § 87(2)(b) that they would get his information later.

PO Schumacher viewed § 87(2)(b)'s arrest report but it did not refresh his memory of the incident.

**Subject Officer: PO JUAN MORALES**

- *PO Morales, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) black man with black hair and brown eyes.*
- *On February 4, 2014, PO Morales worked from 5:30 p.m. to 5:35 p.m. on February 5, 2014. He had the same assignment as PO Ardolino and PO Schumacher.*

**Memo Book** (encl. E21-22)

At 10:35 p.m., PO Morales marked a car stop at Vermont Court and Jackie Robinson Parkway. At 10:40 p.m., he marked two arrests by PO Ardolino for blocking a fire hydrant.

**CCRB Statement** (encl. E23-25)

On May 30, 2014, PO Morales provided a statement to the CCRB. § 87(2)(g)

PO Morales stated that he sat in the backseat but did not recall his partners' seating positions. While his partners approached unknown sides of § 87(2)(b)'s vehicle, PO Morales walked to the rear of § 87(2)(b)'s vehicle. PO Morales did not observe any shapes or bulges to § 87(2)(b)'s clothing as he and § 87(2)(b) walked to the rear of the vehicle. PO Morales frisked § 87(2)(b)'s upper torso, waist, and pockets to make sure that § 87(2)(b) was free of weapons. He denied searching § 87(2)(b). He denied seeing any officer make physical contact with § 87(2)(b). § 87(2)(b) was arrested for § 87(2)(b), but he did not know who recovered it, or from where it was recovered.

While PO Morales was speaking with the civilians, his partners were at the front of § 87(2)(b)'s vehicle. He could not tell what his partners were doing, and did not see his partners search the vehicle.

At the scene, neither of the civilians asked PO Morales for his name or shield number. He did not hear them ask his partners their information. PO Morales had no interaction with, and did not see his partners interact with the civilians at the stationhouse. He did not hear § 87(2)(b) or § 87(2)(b) asked any officer for their name or shield number.

PO Morales viewed § 87(2)(b)'s arrest report, but it did not refresh his recollection of the incident.

**Subject Officer: SGT. ROBERT AGATE**

- *Sgt. Agate, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white man with brown hair and brown eyes.*
- *On February 4, 2014, Sgt. Agate was the Conditions Unit supervisor. He worked from 5:15 p.m. through 2:12 a.m. on February 5, 2014 with PO David Quattrocchi and PO Frederick Manney. They were dressed in uniform and assigned to #§ 87(2) an unmarked black Chevy Impala.*

**Memo Book** (encl. E26-27)

Sgt. Agate had no relevant memo book entries. At 6 p.m., he was on patrol. At 5:12 a.m., he marked the end of his tour.

**CCRB Statement** (encl. E28-29)

On June 12, 2014, Sgt. Agate provided a statement to the CCRB.

Sgt. Agate received a phone call from PO Ardolino stating that they had spotted a white Chrysler that matched a description of a car involved in a shooting a week or two prior. Sgt. Agate verified § 87(2)(b) and § 87(2)(b)'s arrests over the phone. At the stationhouse, Sgt. Agate prepared their arrest entries in the Command Log. He did not recall § 87(2)(b) and § 87(2)(b) interacting with PO Ardolino, PO Schumacher, or PO Morales. He did not hear the civilians ask for any officer's name or shield number.

**NYPD Documents:**

#### **75<sup>th</sup> Precinct Command Log** (encl. F1)

§ 87(2)(b) and § 87(2)(b) s arrest entries in the 75<sup>th</sup> Precinct Command do not list the supervisor who verified the arrest.

#### **I-Card #** § 87(2)(b) (encl. F71, H34)

The I-Card for § 87(2)(b) was issued on § 87(2)(b) and noted that there was probable cause to arrest him related to a charge of § 87(2)(b). § 87(2)(b)

#### **Other Evidence:**

#### **Google Streetview Map** (encl. C1-2)

A Google Streetview Map of Vermont Court and Bulwer Place confirmed that the incident location is a dead-end residential street. No external surveillance camera system is apparent.

#### **Arrest for Incident and Disposition** (encl. G1-3, G13)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)  
§ 87(2)(b)
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

#### **Status of Civil Proceedings** (encl. G17)

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of June 18, 2014, with regard to the incident. On October 8, 2014, an updated inquiry was submitted online via the New York City's Comptroller's Office website and is pending receipt.

#### **Civilians Criminal History** (encl. G1-16)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)  
§ 87(2)(b)
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

#### **Civilians CCRB History** (encl. B5-6)

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b)

#### **Subject Officers CCRB History** (encl. B1-4)

- PO Ardolino has been a member of the service for two years and there are no substantiated CCRB allegations against him.
- PO Schumacher has been a member of the service for four years and there are two substantiated CCRB allegations against him.



- In CCRB case number, 201204235, the CCRB substantiated entry and physical force allegations against PO Schumacher and recommended charges. No NYPD disposition is currently available.
- PO Morales has been a member of the service for two years and there are no substantiated CCRB allegations against him.
- Sgt. Agate has been a member of the service for eight years and there are no substantiated CCRB allegations against him.

## Conclusion

### Identification of Subject Officers

§ 87(2)(b) alleged that the rear passenger of the RMP searched her car, and the front passenger searched her and leaned into her car. § 87(2)(b) alleged that RMP operator searched him and the car. They both alleged that the three officers refused to provide their identifying information upon request.

§ 87(2)(b) and § 87(2)(b) collectively described the RMP operator as a 5'7" to 5'8" tall white man with black hair and blue or light eyes," the front passenger as a 5'5" to 5'7" tall white man with dark hair and brown eyes, and the officer in the rear seat as a black man. Although PO Schumacher stated that he sat in the rear seat, his statement is contradicted by PO Morales, who stated that he was in the rear seat.

According to their pedigree information, both PO Schumacher and PO Ardolino are 5'8" tall white men with brown hair, and hazel eyes and brown eyes, respectively, and PO Morales is a black man.

§ 87(2)(g)  
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 § 87(2)(g)

### Allegations Not Pleaded

§ 87(2)(g)  
 § 87(2)(b) alleged that immediately prior to searching them, PO Ardolino frisked her and § 87(2)(b) at the scene. § 87(2)(b) denied that he was frisked at the scene and did not witness any officer make physical contact with § 87(2)(b)'s person. PO Ardolino and PO Morales both admitted frisking both § 87(2)(b) and § 87(2)(b) at the scene. § 87(2)(g)  
 § 87(2)(b) alleged that PO Ardolino searched § 87(2)(b) but § 87(2)(b) stated PO Schumacher searched him. § 87(2)(g)

### Investigative Findings and Recommendations:

**Allegation A- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO Michael Ardolino searched § 87(2)(b)**

**Allegation B- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO William Schumacher searched § 87(2)(b)**

**Allegation C- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO Juan Morales searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation E- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn, PO William Schumacher searched the vehicle in which § 87(2)(b) was an occupant.**

The officers consistently stated that they smelled a strong odor of marijuana emanating from § 87(2)(b)'s vehicle upon approach. § 87(2)(b) and § 87(2)(b) denied any odor of marijuana to his person or her vehicle, but both stated that § 87(2)(b) smoked marijuana prior to the incident. § 87(2)(b) also admitted that he was in possession of a quantity of marijuana that was probably in the cup holder of the vehicle.

§ 87(2)(b) stated that PO Ardolino searched her, and § 87(2)(b) stated that PO Schumacher searched him. She stated that she saw PO Ardolino search § 87(2)(b)'s pockets, after which she saw PO Ardolino with the bag of marijuana in hand. § 87(2)(b) stated his bag of marijuana was recovered by PO Schumacher during the vehicle search.

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegations A through E be **exonerated**.

**Allegation F- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn and at the 75<sup>th</sup> Precinct stationhouse, PO Michael Ardolino refused to provide his name and shield number to**

**§ 87(2)(b) and § 87(2)(b)**

**Allegation G- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn and at the 75<sup>th</sup> Precinct stationhouse, PO William Schumacher refused to provide his name and shield number to**

**§ 87(2)(b) and § 87(2)(b)**

**Allegation H- Abuse of Authority: At Vermont Court and Bulwer Place in Brooklyn and at the 75<sup>th</sup> Precinct stationhouse, PO Juan Morales refused to provide his name and shield number to**

**§ 87(2)(b) and § 87(2)(b)**

§ 87(2)(b) and § 87(2)(b) alleged that they repeatedly asked all three officers for their names and shield numbers at the stationhouse, and at both the scene and the stationhouse, respectively. § 87(2)(b) stated that PO Ardolino and PO Schumacher responded to the effect of, “No problem, you’ll get it,” and, “You’ll get the information you need.” She did not notice if PO Morales heard her request. § 87(2)(b) stated that at the scene, only PO Schumacher acknowledged his request, saying that he would provide the information at the stationhouse. § 87(2)(b) stated that at the stationhouse, the officers looked at them but did not respond to the requests. § 87(2)(b) and § 87(2)(b) obtained PO Ardolino’s name from his arrest paperwork, but did not obtain PO Morales’ or PO Schumacher’s information.

PO Schumacher, PO Ardolino, and PO Morales denied hearing the civilians ask them for their identifying information at scene or at the stationhouse. Sgt. Agate did not witness these allegations.

§ 87(2)(g)

Therefore, it is recommended that Allegations F through H be **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date